

11	Belflora Maintenance Corporation vs. DeQuardo 2024-01385267	Motion for Order to Show Cause re: Contempt Against Defendant Plaintiff Belflora Maintenance Corporation’s moves for an order directing Defendant, Lianna Dequardo, to show cause why Defendant should not be held in contempt of this Court for Defendant’s willful disobedience of a Court Order awarding sanctions to Plaintiff, which was entered by this Court on October 16, 2025. Contempt, which occurs outside the presence of the court is considered an indirect contempt. (Hanson v. Superior Court (2001) 91 Cal.App.4th 75, 81.) “When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt. . .” (Code Civ. Proc. § 1211, subd. (a).) “[T]he affidavit by which a contempt proceeding is instituted, in order to sufficiently support an adjudication of contempt, must state facts constituting the offense, otherwise the court is without jurisdiction, and the facts essential to establish jurisdiction are (1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.” (People v. Superior Ct. for Los Angeles Cnty. (1965) 239 Cal.App.2d 99, 104.) “The affidavit is in effect a complaint, frames the issues before the court and is a jurisdictional prerequisite to the court’s power to punish.” (Koshak v. Malek (2011) 200 Cal.App.4th 1540, 1549.) A “...declaration...given under penalty of perjury... is a satisfactory substitute for an affidavit.” (In re Morelli (1970) 11 Cal.App.3d 819, 830.) Plaintiff moves on the grounds Defendant has failed to comply with the Court’s Order awarding Plaintiff monetary sanctions (“Sanctions Order”) following a hearing on Plaintiff’s Motion to Compel Discovery Responses, including Requests for Production of Documents, Form Interrogatories, and a Motion to have Requests for Admission deemed admitted. (Mahar Decl., ¶ 5, Ex. A.) The Sanctions Order required Defendant to pay Plaintiff \$4,955.55 within ninety (90) days of Notice of the Order. (Mahar Decl., ¶ 5, Ex. A.) The Notice of Sanctions Order was served on Defendant’s counsel by email on October 17, 2025. (Mahar Decl. ¶16, Ex. C.) Plaintiff sent Defendant a meet and confer letter on January 16,
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	2023, and demanded payment by January 23, 2026. (Mahar Decl. ¶7, Ex. B.) To date, Defendant has failed to pay the sanctions award. (Mahar Decl., ¶ 8.) As to Defendant’s willful disobedience of the Sanctions Order, Plaintiff contends Defendant willfully disobeyed the Sanctions Order by failing to pay the amount required, even following a courtesy reminder by Plaintiff. Willful disobedience is not limited to a deliberate intention to disregard a court order, but it also encompasses “an indifferent disregard of the duty to obey [a court order] promptly.” (In re Karpf (1970) 10 Cal.App.3d 355, 372 [citation and internal quotations omitted].) A disclaimer of the intent to commit contempt is no defense where contempt clearly appears from the circumstances constituting the act. (City of Vernon v. Superior Court (1952) 38 Cal.2d 509, 518). Thus, where a defendant had knowledge of the terms of an injunction and failed to comply, “it can be reasonably inferred that his/her inaction was intentional...” (Ibid.) Tentative Ruling: Plaintiff Belflora Maintenance Corporation’s motion for an order directing Defendant, Lianna Dequardo, to show cause why Defendant should not be held in contempt of this Court for Defendant’s willful disobedience of a Court Order awarding sanctions to Plaintiff, which was entered by this Court on October 16, 2025, is GRANTED. Defendant Lianna Dequardo is hereby ORDERED to appear in person before the court on 06/23/2026 at 9:00 am in Department C15 to show cause as to why she should not be held in contempt of court for her failure to obey the provisions of the Court Order dated October 16, 2025. As part of the proceedings, Defendant shall be afforded the right to examine witnesses for or against her. Notice of the Order to Show Cause, along with the affidavits in support of Plaintiff’s Motion, shall be personally served upon Defendant. (Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1287 fn. 6 [“ ‘Personal service of the order to show cause on the party charged is a jurisdictional basis of a contempt order.’ ”].) Proof of service shall be filed at least 5 court days prior to the hearing on the Order to Show Cause. Moving party shall give notice.
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12	Truong vs. Batalla 2023-01300672	Motion for Terminating Sanctions Defendant's motion was served on Plaintiff via email on 1/29/26. However, Plaintiff's counsel withdrew from this matter effective 9/18/24 and Plaintiff apparently remains unrepresented by counsel in this case. Therefore, Defendant is required to serve the motion on Plaintiff via non-electronic means, such as mail or personal service. California Rules of Court, Rule 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. Here, there is no indication Plaintiff has affirmatively consented to electronic service. Therefore, unless Defendant obtains Plaintiff's consent to electronic service, Defendant must serve the motion on Plaintiff by non-electronic means within the statutory notice period before the new hearing date. Tentative Ruling: Defendant Luis Batalla's Motion for Terminating Sanctions is CONTINUED to 6/22/26 at 1:45 p.m. in this Department.
13	Alliance Funding Group vs. ELT Transportation LLC 2024-01411660	Claim of Exemption - Wage Garnishment Before the Court is the continued hearing on a claim of exemption of wages presented by judgment debtor Teona Petrosian (Debtor) and the opposition to claim of exemption filed by judgment creditor Alliance Funding Group (Creditor). The Court finds Debtor timely complied with the requirements to claim an exemption of levied funds, and Creditor timely complied with the requirements to oppose the claim of exemption. (Code of Civ. Proc. §§ 703.520, 703.550.)